

Missing Child / Absconding Procedure

SECTION 1: PURPOSE, DEFINITIONS & IMMEDIATE RESPONSE

1 PURPOSE

This procedure provides Chosanta Management staff with a clear, structured response protocol for situations where a child or young person in the care of the service is missing, absent without permission, or has absconded from the residential setting. The safety and welfare of the child is the overriding priority in all circumstances.

This procedure is aligned to the following legislative and regulatory framework:

- ✓ **Child Care Act 1991** — statutory duty of care to children placed in residential care
- ✓ **Children First Act 2015 & Children First National Guidance 2017** — mandated reporting obligations; any disclosure made on return may trigger reporting duty
- ✓ **HIQA National Standards for Children's Residential Centres 2018, Standard 3 (Safe Care and Support)** — providers must have clear procedures to protect children from harm, including missing episodes
- ✓ **Tusla / An Garda Síochána Joint Working Protocol for Children and Young People Missing from Care** — governs notification thresholds, Garda primacy in investigation, and Tusla responsibilities throughout the missing episode
- ✓ **Child Care (Placement of Children in Residential Care) Regulations 1995 (S.I. 259/1995)** — requires records of all significant events including missing episodes
- ✓ **Each child must have an individual Absence Management Plan (AMP)** — developed by the social worker, carers, and keyworker; reviewed monthly; specifying risk level and reporting thresholds for that child

2 DEFINITIONS

- ✓ **Absent Without Permission (AWOP):** The child has left the premises without authorisation but their general whereabouts may be known or suspected. Their individual Absence Management Plan will specify whether this is immediately reportable
- ✓ **Missing:** Under the *Tusla/AGS Joint Working Protocol*, a child in residential care is considered missing where their whereabouts are **unknown for 15 minutes or longer** and there are concerns for their safety, or where they have failed to return at an agreed time
- ✓ **Absconding:** The child has deliberately fled the placement in distress or against explicit instruction — always treated as missing until located and safety confirmed

🔥 **Critical Rule (Tusla/AGS Protocol):** Under the Joint Working Protocol, a child is reportable as *missing* after **15 minutes** if their whereabouts are unknown and there are safety concerns. Individual Absence Management Plans may set a lower threshold ("zero leeway") for high-risk children — report **immediately** for those cases.

3 IMMEDIATE RESPONSE (0–15 MINUTES)

Upon discovering a child is missing or has absconded:

- ✓ **Step 1:** Staff member immediately conducts a thorough search of the premises — all rooms, bathrooms, outdoor areas, storage areas, and any known hiding places
- ✓ **Step 2:** Alert all staff on duty. Assign one staff member to continue searching while another contacts the PIC/on-call manager
- ✓ **Step 3:** Attempt to contact the child by phone (if they have a mobile). Contact known friends, family, or associates who may know the child's location
- ✓ **Step 4:** Record the exact time the child was last seen, what they were wearing, their emotional state, and any events that may have triggered the absence
- ✓ **Step 5:** Check CCTV footage (if available) to determine the direction and time of departure

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SECTION 2: GARDA NOTIFICATION & ESCALATION TIMELINES

4 GARDA NOTIFICATION THRESHOLDS

Under the **Tusla / An Garda Síochána Joint Working Protocol for Children Missing from Care**, staff must make all reasonable efforts to locate the child, then notify AGS as follows. Once notified, **An Garda Síochána have primary responsibility for investigating the child's whereabouts**. Tusla staff continue to conduct parallel inquiries and share all information gathered with the Gardai throughout:

Scenario	AGS Notification Timeline
Child designated "zero leeway" in their Absence Management Plan	Immediately upon unauthorised absence
Child under 13 years — whereabouts unknown	Immediately (within 15 minutes)
Any child with known vulnerability (self-harm, exploitation, CSE, mental health, substance misuse)	Immediately (within 15 minutes)
Any child — whereabouts unknown for 15 minutes with safety concern	Report immediately per Joint Protocol
Child aged 13–17 — absent, low-risk profile, reasonable efforts made	Per Absence Management Plan (typically within 1 hour)

⚠ Note: These are maximum timeframes. Staff should always err on the side of caution and report sooner if they have any concern for the child's safety. When in doubt — report immediately.

5 ESCALATION TIMELINES

Internal and external notifications:

Action	Timeframe	Responsible Person
PIC / On-call manager notified	Immediately	Staff on duty
An Garda Síochána notified	Per thresholds above	PIC / On-call manager
Director notified	Within 30 minutes	PIC / On-call manager
Referring social worker / Tusla duty social worker notified	Within 1 hour	PIC
Parents / guardians notified (where appropriate and safe)	Within 1 hour	PIC / Social worker
Tusla formal notification (Regulation 31/32)	Within 24 hours	PIC / Governance Officer

6 INFORMATION TO PROVIDE TO AN GARDA SÍOCHÁNA

- ✓ Child's full name, date of birth, and photograph (if available and consented)
- ✓ Physical description — height, build, hair colour, distinguishing features
- ✓ Clothing worn at time of last sighting
- ✓ Time and location last seen; direction of travel if known
- ✓ Mobile phone number (if applicable)
- ✓ Known associates, locations the child frequents, or likely destinations
- ✓ Any known risks — self-harm, exploitation, substance use, involvement with dangerous persons
- ✓ Any relevant court orders or bail conditions
- ✓ Name and contact details of the PIC and social worker

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SECTION 3: RETURN, INTERVIEW & RECORDING

7 SAFE RETURN

When the child returns to the placement or is located, the following steps must be taken immediately:

- ✓ Welcome the child back calmly and without judgement — prioritise their physical and emotional safety
- ✓ Conduct a visual welfare check: look for signs of injury, intoxication, distress, or exploitation
- ✓ Provide food, drink, clean clothing, and a quiet space to decompress if needed
- ✓ If the child presents with injuries or disclosures — follow safeguarding and incident reporting procedures immediately
- ✓ Notify An Garda Síochána that the child has been located (if they were formally reported missing)
- ✓ Notify the PIC, Director, social worker, and parents/guardians that the child has been safely returned

8 RETURN INTERVIEW

A return interview must be conducted within 24 hours of the child's return. This is a welfare-focused conversation, not a disciplinary measure. Under HIQA Standard 3, the purpose is to understand what happened, identify risks, and prevent recurrence. The Tusla/AGS Joint Protocol requires that findings from the return interview are shared with the child's social worker and used to review the Absence Management Plan.

The return interview should cover:

- ✓ **Where did the child go?** — locations visited, people they were with
- ✓ **Why did they leave?** — triggers, underlying issues, conflict, boredom, distress, peer pressure
- ✓ **What happened while they were away?** — activities, exposure to risk, substance use, exploitation, criminal activity
- ✓ **How are they feeling now?** — emotional state, fears, concerns about returning
- ✓ **What would help prevent this happening again?** — the child's own suggestions, coping strategies, unmet needs
- ✓ **Conducted by:** A trusted staff member or keyworker — not someone the child is in conflict with. Consider independent advocacy where appropriate

⚠ Important: If the child discloses abuse, exploitation, or criminal activity during the return interview — this triggers immediate mandated reporting obligations under Children First. Do not promise confidentiality.

9 RECORDING REQUIREMENTS

- ✓ A **Missing Child Incident Report** must be completed for every episode — including absent without permission, missing, and absconding events
- ✓ The report must record: date/time reported missing, circumstances, search actions taken, notifications made, time returned/located, return interview summary, and follow-up actions
- ✓ A copy of the report must be placed on the child's individual file and in the centre's incident log
- ✓ Reports must be available for inspection by Tusla, HIQA, and the child's social worker
- ✓ Patterns of absence or absconding must be reported to the PIC for risk assessment review and care plan update

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SECTION 4: PREVENTION, RISK ASSESSMENT & LOG

10 PREVENTION STRATEGIES

- ✓ Maintain positive relationships between staff and young people — children who feel heard and respected are less likely to abscond
- ✓ Ensure care plans address underlying triggers for absconding (family contact issues, peer conflict, mental health, boredom, substance dependency)
- ✓ Provide structured activities, recreation, and engagement opportunities — particularly during high-risk times (evenings, weekends)
- ✓ Use individualised risk assessments to identify children at higher risk of going missing and implement tailored prevention measures
- ✓ Conduct regular headcounts and check-ins — particularly at mealtimes, bedtime, and during transitions
- ✓ Ensure environmental security measures are appropriate (not restrictive) — secure external doors, perimeter awareness, CCTV

11 RISK ASSESSMENT & CARE PLAN UPDATES

- ✓ Following any missing episode, the child's individual risk assessment must be reviewed and updated within 48 hours
- ✓ The care plan must be amended to reflect any new risks identified, triggers, and prevention strategies
- ✓ Where a pattern of absconding emerges (3+ episodes in 30 days), a formal multi-agency strategy meeting must be convened with Tusla and An Garda Síochána
- ✓ Staff debriefing should occur after significant missing episodes to review response effectiveness and identify improvements

✓ MISSING CHILD INCIDENT LOG

Field	Details
Child's Name	
Date of Birth	
Date & Time Reported Missing	
Date & Time Last Seen	
Category (Absent / Missing / Absconded)	
Circumstances / Trigger	
Search Actions Taken	
Garda Notified (Y/N) — Time	
Social Worker Notified — Time	
Parents/Guardians Notified — Time	
Date & Time Returned / Located	
Condition on Return	
Return Interview Completed (Y/N)	
Follow-Up Actions Required	

Completed By: _____ Role: _____

PIC Review Signature: _____ Date: _____

Legislative Basis: Child Care Act 1991 · S.I. 259/1995 · Children First Act 2015 · HIQA National Standards 2018 (Standard 3) · Tusla/AGS Joint Working Protocol for Children Missing from Care

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